

25NWCV04567 25NWCV04567

County: los-angeles

Division: Civil Law and Motion

Department: C

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Case Number: 25NWCV04567 Hearing Date: July 27, 2026 Dept: C

LEE, et al. vs LOYD JONES, JR.

CASE NO.: 25NWCV04567

HEARING: 7/27/26 @

9:30 AM

#20

TENTATIVE RULING

I.

Defendant

FRANCISCO RAMOS (sued herein as DOE 1)'s Unopposed Demurrer is SUSTAINED with 20 days leave to amend.

II.

The Case

Management Conference is ADVANCED from August 5, 2026 to today and CONTINUED to October 15, 2026 at 9:00 a.m. in Dept. SE-C.

Moving party to give

NOTICE.

Defendant

FRANCISCO RAMOS, DOE 1, (Ramos) generally demurs to Plaintiffs MEN JA LEE and SOO YEON LEE's (collectively "Plaintiffs") Complaint on the grounds that it is uncertain, ambiguous, and unintelligible as to Ramos.

No

opposition filed as of July 24, 2026.

Background

Plaintiffs

allege that on September 6, 2025, WOON TEAK LEE (Decedent) went for a walk in his own neighborhood. At approximately 6:46 a.m Decedent was walking westbound along the north curbline of 166th Street near Graystone Avenue, a quiet residential street in the City of Norwalk. (Complaint, ¶ 10.) Decedent was attacked by Defendant LOYD JONES JR.'s two Rottweiler dogs. (Complaint, ¶ 11.) Emergency medical services rushed Decedent to Saint Francis Medical Center. He was admitted to the Intensive Care Unit in critical condition. (Complaint, ¶ 13.) On September 7, 2025, at approximately 6:36 a.m., Decedent was pronounced dead. (Complaint, ¶ 15.)

Plaintiffs

assert the following causes of action for:

1. STRICT LIABILITY [WRONGFUL DEATH AND SURVIVAL ACTION] -- DOG BITE STATUTE (CIV. CODE § 3342)
2. STRICT LIABILITY [WRONGFUL DEATH AND SURVIVAL ACTION] -- DANGEROUS PROPENSITIES (COMMON LAW)
3. NEGLIGENCE [WRONGFUL DEATH AND SURVIVAL ACTION] -- FAILURE TO PROPERLY RESTRAIN DOGS
4. NEGLIGENCE [WRONGFUL DEATH AND SURVIVAL ACTION] -- FAILURE TO MAINTAIN ADEQUATE ENCLOSURES
5. NEGLIGENCE [WRONGFUL DEATH AND SURVIVAL ACTION] -- FAILURE TO WARN OF DANGEROUS PROPENSITIES
6. NEGLIGENCE [WRONGFUL DEATH AND SURVIVAL ACTION] -- NEGLIGENT KEEPING OF DANGEROUS ANIMALS
7. PREMISES LIABILITY [WRONGFUL DEATH AND SURVIVAL

ACTION] -- DANGEROUS CONDITION ON PROPERTY

8. NEGLIGENCE PER SE [WRONGFUL DEATH AND
SURVIVAL ACTION] -- VIOLATION OF ANIMAL CONTROL LAWS

9. INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
[SURVIVAL ACTION]

10. NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS
[SURVIVAL ACTION]

Legal
Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show in what manner plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (Id.)

Discussion

Doe 1

Amendment

Code of Civil

Procedure section 474 allows a plaintiff to name fictitious defendants, or “Does.” The complaint must state a cause of action against each Doe defendant. (Pacific Coast Refrigeration, Inc. v. Badger (1975) 52 Cal.App.3d 233, 249–250.) It must allege that the plaintiff is ignorant of the Doe defendant's name. (Code Civ. Proc., § 474.) Moreover, the plaintiff must actually be ignorant of the Doe defendant's name, i.e., “ignorant of the facts giving rise to a cause of action against that defendant.” (Fuller v. Tucker (2000) 84 Cal.App.4th 1163, 1170.) When the plaintiff discovers a Doe defendant's true name, he or she must amend the complaint accordingly. (Code Civ. Proc., § 474; see Jonson v. Weinstein (1967) 249 Cal.App.2d 954, 957.) Provided these requirements are satisfied, the amendment is deemed to “relate[] back” to the filing date of the original complaint for purposes of the statute of limitations. (Fireman's Fund Ins. Co. v. Sparks Construction, Inc. (2004) 114 Cal.App.4th 1135, 1143.)

Here, while

Plaintiffs may amend the complaint to include Ramos, Plaintiffs must also allege sufficient facts to provide Ramos with notice as to what the claims asserted against him are and why. (Davaloo v. State Farm Ins. Co. (2005) 135 Cal.App.4th 409, 415.) Plaintiffs fail to allege that Ramos owned, harbored, or kept the dogs; had any duty to restrain or contain them; had knowledge of any dangerous propensity; controlled, owned, or maintained any premises where the attack occurred; or engaged in any act or omission giving rise to liability. Indeed, Plaintiffs allege:

At all times relevant hereto, Defendant LOYD JONES JR. was the owner, keeper, harborer, and person in control of two (2) Rottweiler dogs that attacked and killed Decedent WOON TEAK LEE.

(Complaint, ¶ 8.)

The true names and capacities of Defendants DOES 1 through 50, inclusive, are unknown to Plaintiffs at this time. Plaintiffs will seek leave to amend this Complaint to state the true names and capacities when

ascertained

(Complaint, ¶ 9.)

Plaintiffs

make no allegations against the Doe Defendants. Moreover, Plaintiffs' amendment fails to make any additional factual allegations as to Ramos. In demurrer, Ramos contends that "Plaintiffs subsequently identified Defendant RAMOS as a Doe Defendant based on the alleged claim by Defendant LOYD JONES JR. that Defendant RAMOS permitted Defendant LOYD JONES JR. to use his property to house his dogs." (Dem., p. 14: 16-18.) These allegations are absent from the Complaint, defendant Jones' Answer, and the Doe 1 Amendment to the Complaint. Therefore, there is an absence of allegations against Ramos specifically and Doe Defendants generally that could be attributed to Ramos.

Accordingly,

the demurrer is SUSTAINED with 20 days leave to amend.